

Franciscus Dylan Rosario,
7624 Melody,
Rohnert Park, CA 94928,
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

[PROPOSED] ORDER

CROSS-CASE JUDICIAL ESTOPPEL

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under California Rules of Court, rule 3.1312; Code of Civil Procedure section 1019.5; and California Rules of Court, rule 3.1110.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.
4. The Court's authority to consider the substance is under *Aguilar v. Lerner* (2004) 32 Cal.4th

974, 986 to 987; Code of Civil Procedure section 425.16; and Code of Civil Procedure section 436.

5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order.

The Court, having considered Plaintiff's Notice of Cross-Case Judicial Estoppel Facts From CGC-25-631801; the accompanying Memorandum of Points and Authorities; the Declaration of Francisco Dylan Rosario; the Supplemental Request for Judicial Notice of 801 Filings and the May 12, 2026 Department 301 Minute Order; the Index of 801 Estoppel Appendix; the Verbatim 801 Admissions and 802 Contradictions; the Verified Statement of Privity, Counsel Identity, and Same Nucleus; the Proof of Service; and any opposition or response by Defendant CSAA Insurance Exchange, and good cause appearing,

IT IS HEREBY ORDERED:

1. JUDICIAL NOTICE GRANTED

The Court grants Plaintiff's Supplemental Request for Judicial Notice and takes judicial notice, under Evidence Code sections 452, subdivisions (d) and (h), and 453, of Exhibits 801-A through 801-H to that Request, namely:

- a. The Memorandum of Points and Authorities in Support of Defendants' Special Motion to Strike under Code of Civil Procedure section 425.16, filed in CGC-25-631801 on April 9, 2026 (Exhibit 801-A).
- b. The Memorandum of Points and Authorities in Support of Defendants' Demurrer to the First Amended Complaint, filed in CGC-25-631801 on April 13, 2026 (Exhibit 801-B).
- c. The Reply to Plaintiff's Opposition to Defendants' Special Motion to Strike, filed in CGC-25-631801 on May 5, 2026 (Exhibit 801-C).
- d. The May 12, 2026 minute order of Department 301 in CGC-25-631801, granting the special motion to strike under Code of Civil Procedure section 425.16 (Exhibit 801-D).
- e. The Notice of Related Case filings under California Rules of Court, rule 3.300 (Exhibit 801-E).
- f. The signature blocks, firm letterhead, and bar numbers identifying Porter Scott, A Profes-

sional Corporation, including Chad S. Tapp (SBN 214898) and Tyler J. O'Connell (SBN 346673), as counsel of record on the noticed 801 filings and on the operative 802 defense filings (Exhibit 801-F).

g. Defendant Subhi Abdelhalim's Motion in Limine No. 6 to Exclude Recorded Materials, Photographs, or Documents Offered by Plaintiff That Were Not Produced in Discovery, filed in CGC-21-594102 on January 17, 2025, FSX Transaction No. 80936030 (Exhibit 801-G).

h. Defendant Subhi Abdelhalim's Motion in Limine No. 17 to Preclude Plaintiff from Using or Referencing an Alleged 911 Transcript Log and Audio Recording, filed in CGC-21-594102 on January 17, 2025, FSX Transaction No. 80936053 (Exhibit 801-H).

Judicial notice is taken of the existence, filing, contents, and legal effect of the noticed records only, and not of the truth of any disputed factual recital within those records. (See *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569; *Aaronoff v. Martinez-Senftner* (2006) 136 Cal.App.4th 910, 919.)

2. FINDINGS SUPPORTING CROSS-CASE JUDICIAL ESTOPPEL

The Court finds, on the face of the noticed records, that:

- a. CGC-25-631801 and CGC-25-631802 are related actions under California Rules of Court, rule 3.300, between the same Plaintiff and Defendant CSAA, with overlapping defense counsel and the same evidentiary nucleus.
- b. Defendant CSAA Insurance Exchange was a moving party on the 801 special motion to strike. The 801 motion was supported by argument that the challenged conduct, including possession, retention, transfer, production, and court-facing statements about the 911 audio, body-worn camera footage, and computer aided dispatch records, was defense-team litigation conduct protected under Code of Civil Procedure section 425.16, subdivisions (e)(1) and (e)(2). That adopted Constructive Petitioning Nexus is the legal-nexus posture addressed by this order.
- c. The Court does not find the truth of the quoted factual allegations. The Court finds only that CSAA selected those pleaded acts as the protected conduct and operative motion premise in 801, obtained relief on that characterization, and is therefore estopped from taking inconsis-

1 tent positions in 802.

- 2 d. Department 301 granted the 801 special motion to strike on May 12, 2026. The acceptance
3 prong of *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986 to 987, is therefore satisfied on the
4 face of the May 12 Order.
- 5 e. Counsel of record on the noticed 801 filings is the same firm (Porter Scott, A Professional
6 Corporation) that signs the operative 802 defense papers. Counsel's positions are imputed to
7 the represented client under *Daar & Newman v. VRL International* (2005) 129 Cal.App.4th
8 482, 491. CSAA's joinder as a moving party in the 801 motion makes the imputation direct.
- 9 f. The contradictions identified in Plaintiff's accompanying memorandum (Sections IV through
10 VI) are structural across four serial 802 briefs by the same counsel. The factor-five mistake
11 exception of *Aguilar*, supra, 32 Cal.4th at 986 to 987, does not apply.
- 12 g. The Court takes judicial notice of MIL 6 and MIL 17 in CGC-21-594102 under Evidence
13 Code section 452, subdivision (d). The Court finds that defense's affirmative representations
14 in those motions that the silent-witness materials had unknown provenance and were not
15 produced in discovery, taken as litigation positions advanced by defense and not as judicially
16 noticed facts, bind defense in this Department against the inconsistent 802 position that CSAA
17 reviewed those same materials.
- 18 h. To the extent CSAA's pending 802 motions ask the Court to credit a complete investigation,
19 reviewed-available-evidence, or readily-obtainable-evidence position, those positions cannot
20 be credited where they are inconsistent with the MIL truth-claims reflected in the noticed
21 record.
- 22 i. The implied-admission paragraphs set forth under each rank in filing item 07 identify the
23 binding doctrinal effect of CSAA's accepted 801 positions on the pending 802 motions. The
24 Court adopts those implied-admission paragraphs as the operative interpretation of the noticed
25 records for purposes of the lock-points imposed by section 3 below, without taking judicial
26 notice of the truth of any underlying disputed fact.

3. CROSS-CASE JUDICIAL ESTOPPEL APPLIED (LOCK-POINTS)

In light of the foregoing findings, and in the exercise of the Court's equitable authority under *Aguilar and Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181, 183, Defendant CSAA shall not, at the June 24, 2026 hearing or at any further proceeding addressing the same motions, advance any of the following positions in support of its pending 802 special motion to strike, demurrer, or motion to strike under Code of Civil Procedure section 436:

- a. **Lock-Point 0 (No MIL-Reversal Bar).** That CSAA reviewed or possessed the silent-witness materials before the February 25, 2021 denial letter. The 801 record contains defense's affirmative representations in MIL 6 (page 3, lines 1 to 5) and MIL 17 (page 3, lines 1261 to 1265 and page 4, lines 1312 to 1314) that those materials had unknown provenance and were not produced in discovery, and defense obtained an evidentiary exclusion ruling on the premise that those representations were truthful, not merely protected.
- b. **Lock-Point 1 (No-litigation-role bar).** That CSAA had no role in the underlying litigation, or that CSAA "did not actually litigate the trial," or any equivalent formulation that denies CSAA's institutional speech in the underlying matter.
- c. **Lock-Point 1A (Constructive Petitioning Bar).** That Plaintiff improperly pleads a legal nexus between CSAA and the defense team's litigation conduct, after CSAA relied on that nexus to obtain anti-SLAPP protection in 801. This bar does not require a finding that CSAA actually directed counsel; it prevents CSAA from disowning the institutional petitioning posture it used to secure relief.
- d. **Lock-Point 2 (No-unknowable-investigation bar).** That Plaintiff has "no way of knowing what steps Defendant CSAA took in investigating the claim," or any equivalent formulation that disclaims the knowability of CSAA's institutional file or pre-suit investigation steps.
- e. **Lock-Point 3 (No-interpretation rebrand bar).** That the in-court statements about "receipt, possession, and prior production" of the silent-witness materials were not factual representations but mere "good faith dispute over the interpretation of evidence."
- f. **Lock-Point 4 (No-clean-verdict-vindication bar).** That the underlying 9-3 defense verdict cleanly validates the February 25, 2021 denial letter, where the 801 victory rested on the

proposition that the institutional defense team's possession, retention, transfer, and production of the silent-witness materials are litigation conduct.

g. **Lock-Point 5 (No Investigation-File Erasure Bar).** That CSAA may invoke a compliant, privileged investigation process for immunity while treating the contents and steps of that same investigation process as legally irrelevant or unknowable when Plaintiff challenges the denial letter. This order does not find that Insurance Code section 790.03 creates the same duty as a tort duty to provide evidence to a third party.

4. EFFECT ON PENDING 802 MOTIONS

To the extent that any of the pending 802 motions (anti-SLAPP, demurrer, motion to strike under section 436) depends, in whole or in part, on a position barred by section 3 above, that portion of the motion is denied or disregarded, without prejudice to the balance of the motion that depends on grounds consistent with the noticed 801 record.

5. ALTERNATIVE NARROWER RELIEF

In the alternative, and to the extent the Court does not adopt the lock-points in section 3 above because it views CSAA's positions as permissible alternative arguments, the Court denies the 802 demurrer and anti-SLAPP motion to the extent they depend on resolving the same factual disputes in CSAA's favor. At minimum, unresolved issues of agency, ratification, investigation steps, possession history, and reliance on court-facing evidence representations cannot be resolved against Plaintiff on demurrer, and they defeat any attempt to convert alternative litigation positions into dispositive pleading-stage findings.

Alternatively, the Court may treat the noticed 801 record as a non-dispositive evidentiary submission limiting the inferences the Court may draw from the noticed 802 papers in resolving the pending motions, with such weight as the Court deems appropriate.

6. RESERVATION

This order does not require Department 302 to revisit, vacate, or reconsider the May 12 Order entered in Department 301. This order is directed solely to limiting the inconsistent positions CSAA may advance in this Department on the noticed 802 motions.

1 **7. SERVICE**

2 Notice of entry of this order shall be served by Plaintiff or by the Court on Defendant's counsel of
3 record by electronic mail per Code of Civil Procedure section 1010.6.

4 IT IS SO ORDERED.